insisted that Kashmir's Constituent Assembly, elected in 1953, was nothing less than a truly representative body chosen by plebiscite, the clear voice of Kashmir's people. Kashmir's most popular leader, Sheikh Muhammad Abdullah, had been supported by Nehru against Maharaja Hari Singh. In 1953, however, when Abdullah favored a UN plebiscite, Nehru felt it was time to arrest him, and he kept Kashmir's Muslim "Lion" behind Indian bars for more than a decade.

By 1954, the Cold War played a role in exacerbating the Indo-Pakistani conflict over Kashmir.[3] Pakistan—which joined the United States and Great Britain in the Central Treaty Organization (CENTO) and the Southeast Asia Treaty Organization (SEATO), military alliances designed to contain Soviet expansion—received substantial military support. India, which was much closer to the Soviet Union thanks to Nehru's socialism and early visit to Moscow, refused to join any of Washington's Cold War alliances. President Eisenhower assured Nehru that no U.S. aid to Pakistan would ever be used against India, but Nehru felt he knew better, and, to counter similar shipments to Karachi from Washington, India turned to the Soviet Union for planes, tanks, and artillery.

On India's Republic Day, 26 January 1957, Kashmir's Constituent Assembly adopted its own state constitution, proclaiming Jammu and Kashmir an integral part of India. A quarter of the hundred seats in the Legislative Assembly in Srinagar were left empty, reserved for future members to be elected from the Pakistani-occupied portion of Kashmir. They have never been filled, and India has insisted that since every election in Jammu and Kashmir has been a true reflection of the free will of its people, no external plebiscite supervised by UNCIP need ever be considered.